



CHAPTER 24.

An Act to make provision for regulating the remuneration and conditions of employment of catering and other workers and, in connection therewith, for their health and welfare and the general improvement and development of the industries in which they are employed.

[10th June 1943.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The Minister of Labour and National Service (hereafter in this Act referred to as "the Minister") shall establish a Commission, to be called the Catering Wages Commission, (hereafter in this Act referred to as "the Commission") to perform, in relation to the workers to whom this Act applies and their employers, such functions as are entrusted to the Commission by this Act.

The Catering Wages Commission and the workers to whom this Act applies.

The provisions of the First Schedule to this Act shall have effect with respect to the constitution, officers and proceedings of the Commission.

(2) The workers to whom this Act applies are all persons employed in any undertaking, or any part of an undertaking, which consists wholly or mainly in the carrying on (whether for profit or not) of one or more of the following activities, that is to say, the supply of food or drink for immediate consumption, the provision of living accommodation for guests or lodgers or for persons employed in the undertaking and any other activity so far as it is incidental or ancillary to any such activity as aforesaid of the undertaking.

(3) In this Act the expression "undertaking" includes any business, whether carried on by way of trade or not, and the activities of any body of persons, whether corporate or unincorporated.

(4) For the purposes of this Act, any worker who, for the purposes of any undertaking or part of an undertaking, performs any work in pursuance of an arrangement express or implied made by the worker by way of trade with the persons carrying on that undertaking shall be deemed to be employed by them in that undertaking or part.

2.—(1) The Commission—

General
functions
of the
Commission.

- (a) shall make such enquiries as they think fit or as they may be directed by the Minister to make into the existing methods of regulating the remuneration and conditions of employment of workers to whom this Act applies, and into any other matter affecting the remuneration, conditions of employment, health or welfare of such workers ;
- (b) shall make such enquiries as they think fit or as they may be directed by the Minister to make into means for meeting the requirements of the public, including in particular the requirements of visitors from overseas, and for developing the tourist traffic ;
- (c) shall make such recommendations (if any) as they think fit to any government department with respect to any matter affecting the remuneration, conditions of employment, health or welfare of such workers or with respect to any such matter as is mentioned in paragraph (b) of this subsection ;
- (d) shall report to the Minister on any matter which he has directed them to enquire into and shall annually submit to him a general report on their proceedings.

Any such general report shall include a statement as to the workers and employers whom the Commission have had under consideration in the period covered by the report and as to the conclusions they have reached with respect to them and the Minister shall as soon as may be lay every such general report before Parliament.

(2) Where any recommendation is made by the Commission under this section to a government department, that department shall forthwith take the recommendation into consideration.

3.—(1) If the Commission are of opinion that there exists machinery set up by agreement between organisations representing employers and workers respectively, which is, or can by improvements which it is practicable to secure be made, adequate for

Machinery
for wage
regulation by
agreement.

regulating the remuneration and conditions of employment of any workers to whom this Act applies, the Commission may report to the Minister accordingly and may in their report include any suggestion which they think fit to make as to the improvement of that machinery.

In considering for the purposes of this or the next succeeding section whether any machinery is adequate for regulating the remuneration and conditions of employment of any workers, the Commission shall consider not only what matters are capable of being dealt with by that machinery, but also to what extent those matters are covered by the agreements or awards arrived at or given thereunder and to what extent the practice is in accordance with those agreements or awards.

(2) Where the Commission in any such report as aforesaid suggest methods for improving any such machinery as aforesaid, the Minister shall take such steps as appear to him to be expedient and practicable to secure the improvements in question and, if the improvements are not thereby secured, he may, if he thinks fit, refer the report back to the Commission and the Commission shall thereupon reconsider it having regard to any observations made by the Minister and shall make a further report to him.

4.—(1) If the Commission are of opinion, as respects any Establishment workers to whom this Act applies and their employers, that of wages such machinery as aforesaid for regulating those workers' boards remuneration and conditions of employment either does not exist or is not, and cannot by any improvement which it is practicable to secure be made, adequate for the regulation thereof, the Commission may make a recommendation to the Minister (hereafter in this Act referred to as "a wages board recommendation") for the establishment of a wages board in respect of those workers and those employers.

The Commission shall not be prevented from making a wages board recommendation in respect of any workers and their employers by the fact that they have previously made a report in respect of some or all of them under subsection (1) of the last preceding section, or by the fact that the conditions for making such a report are fulfilled as respects some (but not all) of them.

(2) Before making a wages board recommendation, the Commission shall make all such investigations as appear to them to be necessary, and shall publish in the prescribed manner a notice stating the terms of the proposed recommendation and further stating that they will consider representations with regard thereto made to them in writing within such period, not being less than twenty-one days from the publication of the notice, as may be specified therein; and the Commission shall consider any written representations made to them within the said period and shall

make such further enquiries as they consider necessary and may then make the recommendation to the Minister either as originally proposed to be made or with such amendments as the Commission think fit having regard to any of the representations.

(3) Where the Minister receives a wages board recommendation, he may, if he thinks fit, by order provide for the establishment of a wages board in respect of such workers and such employers as may be described in the order.

The workers and the employers described in any such order shall be workers to whom this Act applies and their employers and shall be the workers and employers covered by the recommendation, with such variations, if any, as the Minister thinks fit, being variations which in his opinion do not effect important alterations in the character of the recommendation.

(4) Where the Minister receives a wages board recommendation, he may, if he thinks fit, refer it back to the Commission and the Commission shall thereupon reconsider it having regard to any observations made by the Minister and may, if they think fit, re-submit it to the Minister either without amendments or with such amendments as they think fit having regard to those observations; and where a recommendation is so re-submitted, the like proceedings may be had thereon as in the case of an original recommendation.

Abolition, or
variation of
jurisdiction, of
wages boards.

5.—(1) If the Commission are of opinion, as respects any wages board, that the board is no longer necessary or that its field of operation should be varied, they may make a recommendation to the Minister accordingly:

Provided that the provisions of subsection (2) of the last preceding section shall apply in relation to any such recommendation as they apply in relation to wages board recommendations.

(2) Where any such recommendation is to the effect that a wages board should cease to operate in relation to any workers and that another wages board should operate in relation to them, the recommendation may provide that anything done by, or to give effect to proposals made by, the first wages board shall have effect in relation to those workers as if it had been done by, or to give effect to proposals made by, the second wages board, and may make such further provision as seems expedient in connection with the transition.

(3) Where the Minister receives any such recommendation as is referred to in the preceding provisions of this section, he may, if he thinks fit, make an order for giving effect to the recommendation with such modifications, if any, as he thinks fit, being modifications which in his opinion do not effect important alterations in the character of the recommendation:

Provided that the provisions of subsection (4) of the last preceding section shall apply in relation to any such recommendation as they apply in relation to wages board recommendations.

(4) Where an order of the Minister under this section directs that a wages board shall cease to exist or shall cease to operate in relation to any particular workers, then, save as is otherwise provided by the order, anything done by, or to give effect to proposals made by, the wages board shall, except as respects things previously done or omitted to be done, cease to have effect or, as the case may be, cease to have effect in relation to the workers in relation to whom the board ceases to operate.

6.—(1) The provisions of the Second Schedule to this Act shall have effect with respect to the constitution, officers and proceedings of wages boards and as to committees appointed under subsection (2) of this section. General provisions as to wages boards.

(2) Any wages board may request the Minister to appoint a committee for any of the workers in relation to whom the board operates and the Minister shall appoint a committee accordingly, and the board may refer to it for a report and recommendations any matter relating to those workers which the board thinks it expedient so to refer.

(3) In addition to the powers conferred on it by the subsequent provisions of this Act, any wages board shall have power to consider any matter affecting the remuneration, conditions of employment, health or welfare of all or any of the workers in relation to whom the board operates or affecting the general improvement and development of that part of the industry in relation to which the board operates and may submit a report thereon.

(4) Any report made under the last preceding subsection shall be transmitted by the board to the Commission who shall consider the report and transmit it to the government department concerned with such observations as the Commission themselves may wish to make thereon, and the department shall forthwith take the report and any observations of the Commission thereon into consideration.

(5) The Commission, when they consider any report transmitted to them by a wages board under the last preceding subsection, shall consult—

(a) any other wages board ; and

(b) any joint industrial council or other body operating for the purposes of machinery approved by a report made by the Commission under section three of this Act,

which they think ought to be consulted.

Power to
establish
register.

7.—(1) Where a wages board has been established in respect of any workers, the Minister, after consulting the Commission and the wages board, may make regulations requiring all or any of the employers of any such workers to register for the purposes of this Act in the prescribed time and in the prescribed manner, giving such particulars as may be prescribed.

(2) If an employer fails to comply with any such regulations, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

Power to fix
remuneration
and holidays.

8.—(1) Subject to and in accordance with the provisions of this section, any wages board shall have power to submit to the Minister proposals (hereafter in this Act referred to as "wages regulation proposals")—

- (a) for fixing the remuneration to be paid, either generally or for any particular work, by their employers to all or any of the workers in relation to whom the board operates;
- (b) for fixing the intervals for meals or rest to be allowed to all or any such workers as aforesaid by their employers;
- (c) for requiring all or any such workers as aforesaid to be allowed holidays by their employers.

The power to submit proposals for fixing remuneration shall include power to submit proposals for fixing holiday remuneration.

(2) Wages regulation proposals for requiring a worker to be allowed a holiday shall not be made unless both holiday remuneration in respect of the period of the holiday and remuneration other than holiday remuneration have been or are being fixed under this Act for that worker, shall provide for the duration of the holiday being related to the duration of the period for which the worker shall have been employed or engaged to be employed by the employer who is to allow the holiday, and, subject as aforesaid, may make provision as to the times at which or the periods within which, and the circumstances in which, the holiday shall be allowed; and wages regulation proposals for fixing holiday remuneration may contain provisions as to the times at which, and the conditions subject to which, that remuneration shall accrue and shall become payable, and for securing that any such remuneration which has accrued due to a worker during his employment by any employer shall, in the event of his ceasing to be employed by that employer before he becomes entitled to be allowed a holiday by him, nevertheless become payable by the employer to the worker.

(3) Before submitting any wages regulation proposals to the Minister, a wages board shall make such investigations as it thinks fit and shall give such notice of the proposals as may be prescribed, stating the place where copies of the proposals may be obtained

and the period (which shall not be less than twenty-one days from the publication of the notice) within which written representations with respect thereto may be sent to the board ; and the board shall consider any written representations made to it within that period and shall make such further enquiries as it considers necessary and may then submit the proposals to the Minister either without amendments or with such amendments as it thinks fit having regard to the representations.

(4) On receiving any wages regulation proposals, the Minister shall make an order (hereafter in this Act referred to as a "wages regulation order") giving effect to the proposals as from such date as may be specified in the order :

Provided that the Minister may, if he thinks fit, refer the proposals back to the board and the board shall thereupon reconsider them having regard to any observations made by the Minister and may, if it thinks fit, re-submit the proposals to the Minister either without amendment or with such amendments as it thinks fit having regard to those observations ; and where proposals are so re-submitted, the like proceedings shall be had thereon as in the case of original proposals.

(5) As soon as the Minister has made a wages regulation order, he shall give notice of the making thereof to the wages board and that board shall give such notice of the order and the contents thereof as may be prescribed for the purpose of informing, so far as practicable, all persons who will be thereby affected.

(6) Any wages regulation proposals and any wages regulation order for giving effect thereto may make different provision for different cases, and may also contain provision for the amendment or revocation of previous wages regulation orders.

(7) No wages regulation order shall have effect so as to prejudice any rights as to remuneration, holidays or intervals for meals or rest conferred on any worker to whom this Act applies by or under any Act other than this Act or shall affect any worker in relation to any employment if and so long as a trade board or agricultural wages board or agricultural wages committee or the Road Haulage Central Wages Board has jurisdiction in relation to his remuneration for that employment.

(8) Remuneration (including holiday remuneration) fixed by a wages regulation order is hereafter in this Act referred to as "statutory minimum remuneration".

9.—(1) If a contract between a worker to whom a wages regulation order applies and his employer provides for the payment of less remuneration than the statutory minimum remuneration, clear of all deductions, it shall have effect as if for that less remuneration there were substituted the statutory minimum remuneration. Effect and enforcement of wages regulation orders.

remuneration clear of all deductions, and if any such contract provides for the payment of any holiday remuneration at times or subject to conditions other than those specified in the order, it shall have effect as if for those times or conditions there were substituted the times or conditions specified in the order.

(2) If an employer fails to pay to a worker to whom a wages regulation order applies remuneration not less than the statutory minimum remuneration, clear of all deductions, or fails to pay to any such worker holiday remuneration at the times and subject to the conditions specified in the order or fails to allow to any such worker the holidays or intervals for meals or rest fixed by the order, he shall be liable on summary conviction to a fine not exceeding twenty pounds for each offence.

(3) Where proceedings are brought under the last preceding subsection in respect of an offence consisting of a failure to pay remuneration not less than the statutory minimum remuneration, clear of all deductions, then, if notice of intention so to do has been served with the summons, warrant or complaint, evidence may, on the employer or any other person charged as the actual offender having been found guilty of the offence, be given of any like contravention on the part of the employer in respect of any period during the two years immediately preceding the date of the offence, and, on proof of the failure, the court may order the employer to pay such sum as is found by the court to represent the difference between the amount which ought to have been paid during that period to the worker by way of remuneration, if the provisions of this Act had been complied with, and the amount actually so paid.

The powers given by this subsection for the recovery of sums due from an employer to a worker shall not be in derogation of any right of the worker to recover such sums by civil proceedings.

(4) If, as respects any worker employed or desiring to be employed in such circumstances that a wages regulation order applies or will apply to him, the wages board is satisfied that he is affected by infirmity or physical incapacity which renders him incapable of earning the statutory minimum remuneration, it may, if it thinks fit, grant to him, subject to such conditions, if any, as it may determine, a permit authorising his employment at less than the statutory minimum remuneration, and while the permit is in force the remuneration authorised to be paid to him by the permit shall, if those conditions are complied with, be deemed to be the statutory minimum remuneration.

(5) Where an employer employs any worker in reliance on any document purporting to be a permit granted under the last preceding subsection authorising the employment of that worker at less than the statutory minimum remuneration, then, if at or before the commencement of the employment, the employer has notified

the wages board in question that, relying on that document, he is employing or proposing to employ that worker at a specified remuneration, the document shall, notwithstanding that it is not or is no longer a valid permit relating to that worker, be deemed (subject to the terms thereof) to be such a permit until notice to the contrary is received by the employer from the board.

10.—(1) For the purpose of determining whether the remuneration paid or agreed to be paid to a worker to whom a wages regulation order applies is less than the statutory minimum remuneration clear of all deductions, the net remuneration obtained or to be obtained by him in cash from his employer after allowing for his necessary expenditure, if any, in connection with the employment shall, subject to the provisions of this section, be deemed to be the remuneration paid or to be paid to him, and the expression "deductions" in this Act includes deductions in respect of any matter whatsoever except deductions under the Income Tax Acts, the Unemployment Insurance Acts, 1935 to 1940, the National Health Insurance Acts, 1936 to 1941, or any enactment authorising deductions to be made from the remuneration of a worker in respect of contributions to any superannuation or other provident fund, and except any deduction or payment authorised to be made under section one, section two or section three of the Truck Act, 1896.

Computation
of remunera-
tion.

59 & 60 Vict.
c 44.

(2) Notwithstanding anything in subsection (1) of this section, wages regulation proposals and wages regulation orders may contain provisions authorising specified benefits or advantages, being benefits or advantages provided, in connection with the employment, by the employer or by some other person under arrangements with the employer and not being benefits or advantages illegally provided, to be reckoned as payment of wages by the employer in lieu of payment in cash and defining the value at which any such benefits or advantages are to be reckoned.

(3) Where any benefits or advantages are provided, in connection with any employment, by the employer or by some other person under arrangements with the employer, then, whether or not the benefits or advantages are authorised to be reckoned as payment of wages in lieu of payment in cash, any sum paid by the worker in respect of those benefits or advantages shall be deemed for the purposes of this Act to have been deducted by the employer from his remuneration.

11.—(1) Where a wages regulation order is in force affecting any workers, the employer of any such workers shall keep such records as are necessary to show whether or not the provisions of this Act are being complied with as respects them, and the records shall be retained by the employer for two years or such longer period as may be prescribed.

Employers to
keep records.

(2) The employer of any workers to whom this Act applies shall post in the prescribed manner such notices as may be prescribed for the purpose of informing them of any wages regulation order affecting them.

(3) If an employer fails to comply with the requirements of this section, he shall be liable on summary conviction to a fine not exceeding twenty pounds.

Criminal
liability of
agent and
special de-
fence open
to employer.

12.—(1) Where an offence for which an employer is, under this Act, liable to a fine has in fact been committed by an agent of the employer or other person, that agent or other person shall be liable to be prosecuted for the offence in the same manner as if he were the employer, and either together with, or before or after the conviction of, the employer, and shall be liable on conviction to the same punishment as that to which the employer is liable.

(2) Where an employer is charged with an offence under this Act, he shall be entitled, upon information duly laid by him and on giving to the prosecution not less than three days' notice in writing of his intention, to have any other person whom he charges as the actual offender brought before the court at the time appointed for the hearing of the charge; and if, after the commission of the offence has been proved, the employer proves that the offence was due to the act or the default of that other person, that other person may be convicted of the offence, and, if the employer further proves that he has used all due diligence to secure that this Act and any relevant regulation or order made thereunder are complied with, he shall be acquitted of the offence.

(3) Where a defendant seeks to avail himself of the provisions of subsection (2) of this section :—

(a) the prosecution, as well as the person whom the defendant charges with the offence, shall have the right to cross-examine him if he gives evidence and any witnesses called by him in support of his pleas and to call rebutting evidence ;

(b) the court may make such order as it thinks fit for the payment of costs by any party to the proceedings to any other party thereto.

Officers.

13.—(1) The Minister, with the approval of the Treasury as to numbers and salaries, may appoint officers to act for the purposes of this Act, and may, in lieu of or in addition to appointing any officers under this section, arrange with any government department that officers of that department shall act for the purposes of this Act.

Every officer acting for the purposes of this Act shall be furnished by the Minister with a certificate of his appointment or authority

so to act, and when acting under this Act shall, if so required by any person affected, produce the certificate to him.

(2) An officer acting for the purposes of this Act may—

- (a) require any person whom he has reasonable cause to believe to be, or to have been, a worker to whom a wages regulation order applies, or his employer, or the agent of his employer, to give such information as it is in his power to give with respect to the worker's remuneration (including holiday remuneration), his holidays and the other conditions of his employment, and to sign a written statement setting out that information;
- (b) require the production of wages sheets of the employer of any workers to whom a wages regulation order applies or other records of the remuneration paid and the holidays and intervals for meals or rest allowed to such workers and inspect and examine them and copy any material part thereof;
- (c) at all reasonable times enter any premises or place at or in connection with which the officer has reasonable cause to believe workers to whom a wages regulation order applies to be employed or any premises which he has reasonable cause to believe to be used, by or by arrangement with the employer, to provide living accommodation for such workers:

Provided that no person shall be required under paragraph (a) of this subsection to give any information tending to criminate himself.

(3) An officer acting for the purposes of this Act may institute proceedings for any offence under this Act and may, although not of counsel or a solicitor, conduct any such proceedings.

(4) Any officer acting for the purposes of this Act who is authorised in that behalf by general or special directions of the Minister may, if it appears to him that a sum is due from an employer to a worker to whom this Act applies on account of the payment to him of remuneration less than the statutory minimum remuneration, institute on behalf of and in the name of that worker civil proceedings for the recovery of that sum and in any such proceedings the court may make an order for the payment of costs by the officer as if he were a party to the proceedings.

The powers given by this subsection for the recovery of sums due from an employer, to a worker shall not be in derogation of any right of the worker to recover such sums by civil proceedings.

(5) Any officer acting for the purposes of this Act shall furnish the Commission with any information which is in his possession

being information which the Commission require him to furnish to them for the purpose of facilitating the performance of their functions under this Act.

(6) Any person who obstructs any officer acting for the purposes of this Act in the exercise of any power conferred by this section, or refuses to comply with any requirement of such an officer made in the exercise of any such power, shall be liable on summary conviction to a fine not exceeding twenty pounds.

Penalty for false entries in records, producing false records or giving false information.

14. If any person makes or causes to be made or knowingly allows to be made any entry in a record required to be kept under this Act, which he knows to be false in a material particular, or for purposes connected with this Act produces or furnishes, or causes or knowingly allows to be produced or furnished, any record or information which he knows to be false in a material particular, he shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months, or to both such fine and such imprisonment.

Expenses.

15. The expenses of the Minister in carrying this Act into effect, and any expenses authorised by the Minister with the consent of the Treasury to be incurred by the Commission, a wages board or a committee appointed under this Act by the Minister, shall be defrayed out of moneys provided by Parliament.

Orders and regulations.

16.—(1) The Minister may make regulations for prescribing anything which under this Act is to be prescribed.

(2) Any order of the Minister made under section four or section five of this Act and any regulation made under any provision of this Act shall be laid as soon as may be before Parliament, and if either House of Parliament, within forty days after any such order or regulation has been laid before it, resolves that the order or regulation be annulled it shall thenceforth be void, but without prejudice to the validity of anything done thereunder in the meantime or to the making of a new order or regulation.

(3) In reckoning the said period of forty days, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

56 & 57
Vict. c. 66.

(4) Section one of the Rules Publication Act, 1893, shall not apply to any such order or regulation as is mentioned in subsection (2) of this section.

Application to the Crown.

17. This Act shall apply in relation to civilian workers employed by or on behalf of the Crown in connection with any industrial undertaking as it applies in relation to workers employed otherwise than by or on behalf of the Crown.

18.—(1) This Act shall not apply in relation to workers employed in any ship. Exclusion of
workers em-
ployed in
ships.

(2) In this section the expression " ship " includes every description of vessel used in navigation.

19. In this Act the expression " wages board " means a wages board established or to be established under this Act. Interpretation.

20. This Act shall, in its application to Scotland, have effect subject to the following modifications :— Application to
Scotland.

(a) for subsections (2) and (3) of section twelve, there shall be substituted the following subsection—

" (2) Where an employer who is charged with an offence under this Act proves to the satisfaction of the court that he has used due diligence to secure compliance with this Act and any relevant regulation or order made thereunder, and that the offence was due to the act or the default of some other person, he shall be acquitted of the offence ; " and

(b) subsection (3) of section thirteen shall be omitted.

21.—(1) This Act may be cited as the Catering Wages Act, 1943. Short title
and extent.

(2) This Act shall not extend to Northern Ireland.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

CONSTITUTION, OFFICERS AND PROCEEDINGS OF THE COMMISSION.

1. The Commission shall consist of persons appointed by the Minister, being—

- (a) not more than three persons chosen as being independent persons ;
- (b) not more than two persons chosen by the Minister to represent employers ;
- (c) not more than two persons chosen by the Minister to represent employed persons.

2. Of the persons appointed under sub-paragraph (a) of paragraph 1 of this Schedule, one shall be appointed by the Minister to be chairman, and another may be appointed by the Minister to act as deputy chairman in the absence of the chairman.

3. The persons appointed by the Minister under sub-paragraphs (b) and (c) of the said paragraph 1 shall be equal in number and shall be appointed after such consultation as the Minister may consider necessary with such organisations representing employers and workers respectively as he thinks fit, and the said persons shall be persons who, in the opinion of the Minister, are qualified to represent the views of employers and workers respectively but are not themselves directly connected with the hotel or catering trades.

4.—(1) The Minister may appoint such number of persons as he thinks fit as assessors to be available to the Commission in connection with any investigation or enquiry that the Commission may undertake, being persons who, in the opinion of the Minister, have expert knowledge of any of the matters which fall within the jurisdiction of the Commission.

(2) An assessor shall not vote or otherwise be a party to any report or recommendation of the Commission.

5. The Minister may appoint a secretary and such officers, as he thinks fit, of the Commission.

6. There shall be paid to members of, and assessors to, the Commission such remuneration by way of fees or, in the case of the chairman of the Commission, by way of salary or fees, and such travelling and other allowances, as the Minister may, with the consent of the Treasury, determine, and all such remuneration and allowances shall be defrayed as part of the expenses of the Minister in carrying this Act into effect.

7. The appointment of a member of the Commission shall be for such term as may be determined by the Minister before his appointment and shall be subject to such conditions as may be so determined.

8. The proceedings of the Commission shall not be invalidated by reason of any vacancy therein or by any defect in the appointment of a member.

1ST SCH.
—cont.

9. The Minister may make regulations as to the meetings and procedure of the Commission, including regulations as to the quorum, but, subject to the provisions of this Act and to any regulations so made, the Commission may regulate their procedure in such manner as they think fit.

SECOND SCHEDULE.

CONSTITUTION, OFFICERS AND PROCEEDINGS OF WAGES BOARDS AND Section 6. OF COMMITTEES.

1. A wages board shall consist of persons appointed by the Minister, being—

- (a) not more than three persons chosen as being independent persons ;
- (b) such number as the Minister thinks fit of persons who, in his opinion, represent employers in relation to whom the board is to operate ;
- (c) such number as the Minister thinks fit of persons who, in his opinion, represent workers in relation to whom the board is to operate.

2. Of the persons appointed under sub-paragraph (a) of paragraph 1 of this Schedule, one shall be appointed by the Minister to act as chairman, and another may be appointed by the Minister to act as deputy chairman in the absence of the chairman.

3. Before appointing a person under sub-paragraph (b) or sub-paragraph (c) of the said paragraph 1, the Minister shall consult any organisations appearing to him to represent employers, or, as the case may be, workers, concerned, and the persons appointed under those sub-paragraphs shall be equal in number.

4. The Minister may appoint a secretary and such other officers as he thinks fit of a wages board.

5. The proceedings of a wages board shall not be invalidated by reason of any vacancy therein or by any defect in the appointment of a member.

6. In order to constitute a meeting of a wages board, at least one member appointed under sub-paragraph (a) of paragraph 1 of this Schedule and at least one-third of the whole number of members appointed under sub-paragraphs (b) and (c) thereof must be present.

7. The Minister may make regulations as to the meetings and procedure of a wages board, including the method of voting, but, subject to the provisions of this Act and to any regulations so made, a wages board may regulate its procedure in such manner as it thinks fit.

2ND SCH.
- cont.

8.—(1) Any committee appointed by the Minister at the request of a wages board shall consist of—

- (a) a chairman chosen as being an independent person ;
- (b) persons who appear to the Minister to represent the employers in relation to whom the committee will operate ; and
- (c) persons who appear to the Minister to represent the workers in relation to whom the committee will operate.

(2) On any such committee, the persons appointed under paragraph (b), and the persons appointed under paragraph (c), of the last preceding sub-paragraph shall be equal in number.

9. The appointment of a member of a wages board or of any such committee as aforesaid shall be for such term as may be determined by the Minister before his appointment and shall be subject to such conditions as may be so determined.

10. There may be paid to the members of a wages board appointed under sub-paragraph (a) of paragraph 1 of this Schedule and to the chairman of any such committee as aforesaid such fees, and to any member of any such board or committee, such travelling and other allowances, as the Minister may, with the consent of the Treasury, determine, and all such fees and allowances shall be defrayed as part of the expenses of the Minister in carrying this Act into effect.

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